

Question:

A defendant is on trial for theft of a used car that he took for a test drive and did not return. He was arrested in the car two days later. In his defense, the defendant has testified that he had no intention of keeping the car but got caught up in marital problems and simply delayed returning it. The defendant calls a witness to testify that the defendant told him, during the two days, "I'm going to return this car as soon as I work things out with my wife." Is the witness's testimony admissible?

Answer Choices:

- A. Yes, as it provides context to the defendant's actions.
- B. Yes, as a prior consistent statement of the defendant.
- C. No, because it is a statement that could potentially influence the jury.
- D. Yes, as a statement of the defendant's future intentions.
- E. No, because it is irrelevant to the case.
- F. Yes, as a statement by the defendant of his then-existing state of mind.
- G. No, because it is a self-serving statement by an accused.
- H. Yes, as it is evidence of the defendant's character.
- I. No, because it is a statement made after the event.
- J. No, because it is hearsay not within any exception.

Reasoning + Answer:

</tool_call> reasoning process here

The witness 's testimony states that the defendant said , " I 'm going to return this car as soon as I work things out with my wife ," during the two days after he was arrested . This statement is made during the time of the alleged offense and relates to the defendant 's state of mind and intent at the time of the incident . The key issue is whether this is admissible under the rule of prior consistent statements .

Under the federal rules of evidence (Rule 801 (c) (1)), a prior consistent statement is admissible if it is made by the defendant and is consistent with the defendant 's current testimony , and it is offered to prove the truth of the matter asserted . In this case , the defendant 's statement about returning the car is a prior statement that is consistent with his claim of not intending to keep the car . This type of statement is admissible as a prior consistent statement to support the defendant 's credibility and to show that his testimony is consistent with his past statements .

This is not hearsay , as it is not offered to prove the truth of the matter asserted by the defendant 's statement , but rather to support the defendant 's credibility and to show consistency . It is not character evidence , not a statement of future intent , and not self-serving in a way that renders it inadmissible . It is not hearsay under any exception because it is a statement by the defendant to a third party and is not offered to prove the truth of the matter asserted in the defendant 's testimony .

Therefore , the statement is admissible under the prior consistent statement exception .

< answer > B < / answer >